

Under section 527.6, subdivision (s), “[t]he prevailing party in an action brought pursuant to this section *may* be awarded court costs and attorney’s fees, if any.” (Italics emphasis added.) By its terms, the subdivision gives trial courts discretion “to award attorney fees to a prevailing party—plaintiff or defendant.” (*Krug v. Maschmeier* (2009) 172 Cal.App.4th 796, 802). The “determination of the prevailing party lies in the court’s sound discretion” and that “determination must be upheld unless there is a manifest abuse of discretion.” (*Elster* (1989) 211 Cal.App.3d 1439, 1443.)

Therefore, the court finds, in its discretion, respondents do not meet the definition of the prevailing party.

Conclusion

Based on the foregoing, respondents’ motion for attorney’s fees is denied.

4. **S-CV-0053111 LeRoy, Joseph v. Pickett, Ryan A**

Defendants are advised the notice of motion for judgment on the pleadings must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendants Ryan A. Pickett and Traci I. Pickett’s Motion for Judgment on the Pleadings

Defendants Ryan A. and Traci I. Pickett (collectively “Picketts”) move for judgment on the pleadings as to the first, second, third, fourth, sixth and ninth causes of action asserted in the first amended complaint (“FAC”) filed by plaintiff Joseph A. Leroy, individually and as trustee of the Joseph A. Leroy Trust (“plaintiff”).

A motion for judgment on the pleadings tests the legal sufficiency of the complaint and is the equivalent to a general demurrer. (Code Civ. Proc. (“CCP”) § 438; *Blank v. Kirwan* (1985) 39 Cal.3d 311.) The court accepts as true all material facts properly pleaded, but not contentions, deductions, or conclusions of law. (*Ibid.*)

As to the first cause of action for breach of contract, the motion is denied. The court finds the FAC alleges sufficient facts to support this claim, in light of factual allegations supporting plaintiff’s fraud theories as discussed below. (*Shapiro v. Hu* (1986) 188 Cal.App.3d 324, 333-334.)

As to the second cause of action for fraud (intentional misrepresentation) and the third cause of action for fraud (concealment) the motion is denied. The court finds the FAC alleges sufficient facts to support misrepresentations and concealment regarding the severity of conditions at the property relating to the barking dogs. California law recognizes liability not only for complete nondisclosure but also for partial or misleading disclosures that materially misrepresent a condition. (See *Lingsch v. Savage* (1963) 213 Cal.App.2d 729, 735; *Pashley v. Pac. Elec. Co.* (1944) 25 Cal.2d 226, 235.) As to the fourth cause of action for negligent misrepresentation, the motion is denied. The court finds the FAC alleges sufficient facts to support this claim.

As to the sixth cause of action for violation of Civil Code section 1102 et seq., the motion is denied. The court finds the FAC alleges sufficient facts to support this claim. Civil Code section 1102 et seq. provides that sellers must disclose known material facts affecting value or desirability, including neighborhood nuisances. Whether defendants' disclosures satisfied this duty, or materially understated the severity of the condition, presents a factual dispute.

As to the ninth cause of action for rescission, the motion is granted. The FAC fails to allege facts demonstrating compliance with Civil Code section 1691(a), including prompt notice of rescission and restoration or offer to restore the benefits received under the contract. While the question of promptness is generally factual, the absence of any allegations addressing notice or tender renders the claim insufficiently pleaded. These defects, however, may be curable and leave to amend is appropriate. Therefore, the court grants the motion with leave to amend as to the ninth cause of action.

Plaintiff shall file and serve any amended complaint no later than June 26, 2026.

5. S-CV-0053338 Demas, John v. Saetes, Peter

If oral argument is requested, it will be heard in Department 42 by the **Honorable Trisha J. Hirashima**. Department 42 is located at 10820 Justice Center Drive, Roseville, California 95678.

Motion for Attorneys' Fees

Plaintiffs move for an award of attorneys' fees in the amount of \$102,492 and costs of \$8,706.42 for a total of \$111,198.42 against defendant Peter Saetes. Plaintiffs also move for post-judgment interest from November 7, 2025 pursuant to Code of Civil Procedure section 685.010.

According to the proof of service filed on November 24, 2025, plaintiffs' moving papers were served on defendant by email only. It appears plaintiffs' reply filed March 12, 2026 was likewise served on defendant by email only. Defendant Saetes is self-represented in this action and there is no indication from the court's file that he has consented to electronic service. (Code Civ. Proc., § 1010.6(c).) Accordingly, there is insufficient evidence of effective service of the motion or the reply on defendant Saetes.

The court on its own motion continues the motion for attorneys' fees to be heard on **July 14, 2026 at 8:30 a.m. in Department 32** before the **Honorable Trisha J. Hirashima**. By June 23, 2026, plaintiffs are directed to file and serve by mail a notice of continued hearing, serve defendant by mail the moving papers and reply, and file all appropriate proofs of service.